

M/S Matrumal Dhannalal Oil Mill v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 25 September 2023 · 2023:AHC:185543-DB · Writ-C No. 26748 of 2023 · **Disposed; 4.20(h) application to be considered in accordance with law.**

HEADNOTE

Writ for return of balance additional security disposed without any opinion on the merits. The consumer had confined the prayer to consideration of a pending refund application. Accepting that para 4.20(h) of the U.P. Electricity Supply Code, 2005 provides the mechanism, the Court observed that an appropriate application moved under that clause shall be considered strictly in accordance with law.

FACTUAL SUMMARY

The petitioner firm, M/S Matrumal Dhannalal Oil Mill, held a commercial electricity connection from Dhakshinanchal Vidyut Vitran Nigam Limited and had deposited Rs 13,04,506 as security on different dates. On account of financial constraint it applied on 1 July 2023 to the Executive Engineer, Electricity Distribution Division, Hathras, for return of the remaining additional security of Rs 1,52,042. The application was still pending when the firm filed this writ for a direction to refund that balance, and at the hearing it confined the prayer to consideration of the application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20(h)

Consideration of application for return of balance additional security

HOLDING

Where a consumer confines a writ for return of balance additional security to consideration of the pending application, the petition is disposed without any opinion on the merits, with the observation that if the consumer moves an appropriate application under para 4.20(h) of the U.P. Electricity Supply Code, 2005, the licensee shall consider it strictly in accordance with law. ¶ 4-6

PRINCIPLE TAGS

security-refund-application-under-4.20h The Court did not decide entitlement to the balance additional security. It treated para 4.20(h) as the mechanism and left an appropriate application under that clause to be considered strictly in accordance with law. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FIRM IS ENTITLED TO REFUND OF THE REMAINING ADDITIONAL SECURITY OF RS 1,52,042.

The Court expressed no opinion on the merits. The operative direction is that an appropriate application under para 4.20(h), if moved, be considered strictly in accordance with law. ¶ 6